

Court No. - 3

Case :- WRIT - C No. - 17423 of 2021

Petitioner :- Sher Mohammad

Respondent :- State Of U.P

Counsel for Petitioner :- Shivangi Singh, Gaurav Singh

Counsel for Respondent :- Rajesh Yadav

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard learned counsel for the petitioner and the learned Standing Counsel for the State.

Submission of learned counsel for the petitioner is that the petitioner has not received any response to his objection and prayer to be supplied adverse material. Thus his application/representation dated 25.7.2019 is stated to be pending.

Since the representation is old, Sri Rajesh Yadav, learned counsel for the Distribution Corporation may obtain written instructions as to the current status of the aforesaid representation.

Put up as fresh on 27.10.2021.

Learned counsel for the petitioner may inform Sri Rajesh Yadav, learned counsel for the Distribution Corporation about this order today itself.

Order Date :- 20.10.2021

M. Tariq

Court No. - 3

Case :- WRIT - C No. - 17423 of 2021

Petitioner :- Sher Mohammad

Respondent :- State Of U.P

Counsel for Petitioner :- Shivangi Singh, Gaurav Singh, Mohd. Kamar
Shah Alam

Counsel for Respondent :- Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"(1) issue a writ, order or direction in the nature of Certiorari quashing the demand notice dated 10.12.2020 issued by the respondent no. 2.

(2) issue a writ, order or direction in the nature of mandamus directing the respondents to decide the representation dated 27.7.2019."

Sri Rajesh Yadav, learned counsel for the respondent No. 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.5.2022

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